

may, after the expiration of such eight days, and within three weeks from the time of such service, apply to the *Record and Writ Clerk* to enter an appearance for such Defendant ; the *Record and Writ Clerk* is to enter such appearance accordingly, upon being satisfied by affidavit that the Subpœna was duly served upon such Defendant personally, or at his dwelling-house or usual place of abode ; and after the expiration of such three weeks, or after the time allowed to such defendant for appearing has expired, in any case in which the *Record or Writ Clerk* is not hereby required to enter such appearance, the Plaintiff may apply to the Court for leave to enter such appearance for such Defendant ; and the Court, being satisfied that the Subpœna was duly served, and that no appearance has been entered for such Defendant, may, if it so thinks fit, order the same accordingly.

English Order
XXX.

The 30th English Order of 1845 is in the precise words of the first section of the above Order 21.

XXXII.
Appointment
of Guardian.

The 32nd English Order of 1845 is in the precise words of the second and third section of the above Order 21. Except that the last word in the English Order is "service," where the above reads "*notices*," but this evidently causes no difference in the meaning of the language.

Process of Con-
tempt abolish-
ed.

The New Orders having provided ample means for proceeding with a cause in the absence of the Defendant, and under the form of Bill now used, a discovery (except in bills for discovery alone) not being required, the process of contempt is now abolished.

Under the above 20th Order, answering to the English 29th Order of 1845, the appearance cannot be entered by the Plaintiff for the Defendant, as of course, if four weeks have elapsed from the service of the Subpœna, but a motion must be made for leave to enter the appearance. This should be made within a reasonable time, or the Court may require a notice to be given to the Defendant, or even a new Subpœna to be taken out. (*Radford vs. Roberts*, 2 Hare, 96 ; *Bointon vs. Parkinson*, 7 Jurist, 367 ; *Devenish vs. Devenish*, 7 Jurist, 841 ; *Edmonds*

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